

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

FORMUKLEEN, INC., *Complainant*

v.

TOP SHIPPING SYSTEMS, CORP., *Respondent*.

DOCKET NO. 25-08

Served: August 26, 2025

ORDER OF: Richard AMBROW, *Administrative Law Judge*.

ORDER GRANTING COMPLAINANT’S COMBINED MOTION FOR LEAVE TO FILE REPLY OUT OF TIME AND TO ACCEPT CONSOLIDATED OVER-LENGTH REPLY; OR, IN THE ALTERNATIVE, FOR LEAVE TO FILE THREE SEPARATE CONFORMING RESPONSES

On August 19, 2025, Complainant filed Complainant’s Combined Motion for Leave to File Reply Out of Time and to Accept Consolidated Over-Length Reply; or, in the Alternative, for Leave to File Three Separate Conforming Responses (“Motion for Leave”).

Respondent filed Respondent’s Response to Complainant’s Combined Motion for Leave to File Reply Out of Time and to Accept Consolidated Over-Length Reply; or, in the Alternative, for Leave to File Three Separate Conforming Responses (“Motion for Leave Response”) on August 26, 2025.

Complainant filed a Motion for Summary Judgment (“MSJ”) on July 16, 2025, along with an accompanying statement of material facts (“CSMF”).

On July 31, 2025, Respondent filed a motion requesting additional time to respond to the MSJ, which I granted by means of an order dated July 31, 2025. (Order Granting Respondent’s Motion for Reconsideration (the “July 31 Order”). The July 31 Order noted that Respondent’s response to the MSJ was due on August 5, 2025, and that Complainant’s reply was due on August 12, 2025, which was 7 days later. (*See* July 31 Order, at 2).

Respondent filed its Response on August 5, 2025, along with a statement of material facts (“RSMF”) and response to the CSMF (“RCSMF”).

Complainant filed a 25-page reply on August 15, 2025.

On August 18, 2025, I issued an Order Disallowing Reply Brief because the Reply was untimely and over-sized. I invited Complainant to file a motion to permit an untimely filing pursuant to Commission Rule 102. (46 C.F.R. § 502.102).

In Complainant's August 19, 2025, Motion for Leave, Complainant explains that the filing was late due to discovery obligations being due. (Motion for Leave, at 2-3). Respondent notes that Complainant did not seek concurrence for the Motion for Leave, but also states that it would not oppose the extension request. (Motion for Leave Response, at 1).

I find that a request for a short extension to accommodate workload is reasonable, especially when it does not prejudice¹ the other parties to the action. Moreover, Respondent indicates no objection. Therefore, I will permit the late filing of the Reply.

Complainant's August 19, 2025, Motion for Leave also asks to file an oversized Reply. Complainant asserts that the proposed Reply is oversized because it is responding to three filings by Respondent: the Response, the RSMF and the RCSMF. Complainant asserts that this reduces docket clutter and eases review. (Motion for Leave, at 3). Respondent again notes that Complainant did not seek concurrence to filing an oversized reply, and asserts that the lengthy Reply is unfair. (Motion for Leave Response, at 2).

Generally, replies to dispositive motions are limited to 15 pages. (46 C.F.R. ¶ 502.70(e)). The Initial Order generally provides that briefs in support of, and opposing, motions for summary judgment are to be accompanied by a separate document containing proposed findings of fact and responses to the same. (Initial Order, at 4-5, ¶¶ 19-21; *see also* Initial Order, at 5-6, ¶ 23). Here, reviewing the proposed Reply, it appears that approximately half of the proposed Reply is a response to the RSMF, as well as commentary on the RCSMF. The Initial Order contemplates that proposed facts and responses are to be placed in a separate document from the brief. Were they placed in a separate document here, the proposed Reply appears that it would have been within the page limit. Accordingly, I will permit the proposed Reply.

Respondent points out that the Complainant did not seek Respondent's concurrence before filing the Motion for Leave. I have rejected other motions in this matter for failure to comply with the concurrence requirement. I will not do so here.

Moving forward, the parties' representatives should attempt in good faith to agree to scheduling and procedural matters (including complying in good faith with the concurrence requirement for non-dispositive motions in 46 C.F.R. § 502.71(a)) so that this proceeding can focus on the issues that are the most relevant to its ultimate disposition. That would be most efficient for the representatives' clients, as well as respectful of the Commission's time. Here, for example, the end result – reasonable extensions granted to both parties – could have been accomplished by means of agreed-to motions, which would have required less time and effort than fighting reasonable extension requests.

¹ Complainant asserts it objected to allowing Respondent an extension to respond to the MSJ because an extension would cause a workload problem for Complainant's representative. Complainant, however, could have asked – and ultimately did ask – for a reasonable extension to remedy the workload concerns.

The parties are reminded that this proceeding is governed by the Commission's Rules. In addition, an Initial Order was issued in this matter. The parties are expected to be familiar, and substantially comply, with the Commission's Rules and the Initial Order.

The Motion for Leave is **GRANTED**. The Office of the Secretary is requested to accept for filing the proposed Reply and accompanying exhibits that is attached to Complainant's Motion for Leave. I will rule on the MSJ in the near future.

Richard C.
Ambrow Jr -S

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Richard C. Ambrow Jr -S
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Richard Ambrow
Administrative Law Judge